

**Court No. - 1**

**Case :-** WRIT - C No. - 2237 of 2020

**Petitioner :-** Shyam Sunder Goswami

**Respondent :-** State Of U.P. And 2 Others

**Counsel for Petitioner :-** Rajeev Kumar Upadhyay

**Counsel for Respondent :-** C.S.C.,Baleshwar Chaturvedi

**Hon'ble Ramesh Sinha,J.**

**Hon'ble Ajit Kumar,J.**

Put up as fresh before appropriate Bench on 04.02.2020.

(Ajit Kumar, J.) (Ramesh Sinha, J.)

**Order Date :-** 23.1.2020

Shiraz

**Court No. - 37**

**Case :-** WRIT - C No. - 2237 of 2020

**Petitioner :-** Shyam Sunder Goswami

**Respondent :-** State Of U.P. And 2 Others

**Counsel for Petitioner :-** Rajeev Kumar Upadhyay

**Counsel for Respondent :-** C.S.C.,Baleshwar Chaturvedi

**Hon'ble Abhinava Upadhya,J.**

**Hon'ble Shamim Ahmed,J.**

As prayed, put up on **10.02.2020** as fresh to enable Shri Baleshwar Chaturvedi, learned counsel for the respondent nos. 2 and 3 to seek instructions in the matter.

**Order Date :-** 4.2.2020

SFH

**( Shamim Ahmed, J.) (Abhinava Upadhya, J.)**

**Court No. - 37**

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**Counsel for Petitioner :-** Rajeev Kumar Upadhyay

**Counsel for Respondent :-** C.S.C., Baleshwar Chaturvedi

**Hon'ble Abhinava Upadhyaya, J.**

**Hon'ble Shamim Ahmed, J.**

By means of this writ petition the petitioner has raised a grievance that inspection of his premises has been conducted in violation of the provisions as contained in Clause 8.1 of the U.P. Electricity Supply Code, 2005.

Shri Baleshwar Chaturvedi, learned counsel appearing for the Electricity Department submits that the petitioner was found involved in theft of electricity and he is using domestic connection for commercial purpose as he is running a school in the said premises and, therefore, final assessment has been made which is appealable under Section 127 of the Electricity Act, 2003. Shri Baleshwar Chaturvedi could not dispute the fact that the inspection of the premises was not in accordance with terms as provided under Clause 8.1 of the U.P. Electricity Supply Code, 2005.

Learned counsel for the petitioner submits that the petitioner has already filed a representation before the Executive Engineer and without considering his objection, the final order has been passed.

We have considered the submissions of learned counsel for the petitioner as well as Shri Baleshwar Chaturvedi, learned counsel for the Electricity Department.

In our view, no useful purpose will be served in keeping the writ petition pending as the objection of the petitioner has not been considered by the Executive Engineer.

As such, the writ petition is **disposed of** with the direction to the Executive Engineer (respondent no. 3) to consider the objection of the petitioner within a period of one month from today and pass appropriate order in accordance with law.

For a period of one month, no coercive action shall be taken against the petitioner pursuant to the demand notice dated 26.11.2019 (Annexure 6 to the writ petition).

**Order Date :-** 10.2.2020

Sunil Kr. Gupta

**(Shamim Ahmed, J.) (Abhinava Upadhyaya, J.)**